THIS ARTICLE MAKES A NOVEL CONTRIBUTION

Luke Smith Morgan[*]

INTRODUCTION

It is not uncommon for law review introductions to contain assertions as to the "novelty" of their contributions to the sum total of human knowledge. Yet, despite much bellyaching by legal academics about the sometimes-overstated nature of these claims, no scholars have taken the antacid of serious inquiry. This Article, for the first time, provides new insight, not yet offered in legal scholarship, into the underexplored question of novelty, which has long persisted without significant interrogation.[1]

Ultimately, the question this Article examines falls between the couch cushions of two independent literatures. The answer it fishes out, while covered in the crumbs of existing wisdom, unseats prior assumptions as to the meaning of novelty. Still, that the question at the intersection of these literatures has remained neglected for so long suggests that the field suffers from a broken traffic light. This Article waves its answer through the intersection. The result—sitting two opposing literatures next to each other at Thanksgiving—yields surprising synergies.

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[*] Assistant Professor of Law, Campbell University School of Law; J.D., Duke Law School, 2019. The author thanks Jesse Williams for his generous comments, which the author has chosen to treat as original.

[1] *But see* Paul Horwitz, *The First*, PRAWFSBLAWG (Dec. 13, 2021), https://prawfsblawg.com/2021_12_the-first/; Orin S. Kerr, *The Very First Empirical Study of Novelty Claims in Law Review Articles*, REASON: VOLOKH CONSPIRACY (Dec. 13, 2021), https://reason.com/volokh/2021/12/13/the-very-first-empirical-study-of-novelty-claims-in-law-review-articles/; Paul Horwitz, *The Missing Element in "This is the first article to…" Sentences*, PRAWFSBLAWG (Feb. 18, 2020), https://prawfsblawg.com/2020_02_what-the-this-is-the-first-article-sentence-needs/; Paul Horwitz, *Connecting the Law Review Dots*, PRAWFSBLAWG (May 16, 2017), https://prawfsblawg.com/2017_05_connecting-the-law-review-dots/; Paul Horwitz, *Three More Takes on Novelty Claims in Legal Scholarship*, PRAWFSBLAWG (Aug. 19, 2013), https://prawfsblawg.com/2013_08_three-more-takes-on-novelty-claims-in-legal-scholarship/; Paul Horwitz, *The Modern Plague of the Law Review Process: The Originality Graf*, PRAWFSBLAWG (Jan. 22, 2012), https://prawfsblawg.com/2012_01_the-modern-plague-of-the-law-review-process-the-originality-graf/; Ross E. Davies, *The Most Important Article of All Time*, 5 GREEN BAG 2D 351 (2002); Jeannie Suk, *Originality*, 115 HARV. L. REV. 1988 (2002); Stuart Banner, *Legal History and Legal Scholarship*, 76 WASH. U. L.Q. 37 (1998); Stephen L. Carter, *Academic Tenure and "White Male" Standards: Some Lessons from the Patent Law*, 100 YALE L.J. 2065 (1991); Edward L. Rubin, *The Concept of Law and the New Public Law Scholarship*, 89 MICH. L. REV. 792 (1991); ROBERT K. MERTON, ON THE SHOULDERS OF GIANTS: A SHANDEAN POSTSCRIPT (1965).

To be sure, many travelers have explored the yellow wood of novelty in legal scholarship. This Article makes all the difference by taking the road less traveled by. And although this Article is not the first to identify a gap in the literature of novelty, it is the first to more precisely identify the gap as a crawlspace, and to bring a flashlight.

Although some scholarly discussions have articulated at a general level a similar theory of novelty, this Article's specific intervention largely has been left on read. This Article, in short, fries the existing literature's leftover rice. In so doing, it calls the name of a question that has been left sitting in the existing scholarship's waiting room. Where existing treatments have brushed the problem's teeth, this Article flosses. And by finishing the literature's basement, it adds significant value to ongoing conversations about novelty.

Indeed, this Article is indebted to, and builds upon, a rich body of existing work. Prior scholarship has anticipated aspects of the argument advanced herein, including its framing, central claim, and several of its more important sentences. Other work has reached substantially similar conclusions, not infrequently by the same route, and—in at least one instance—in the same order. What this Article adds is, in short, this Article. To the author's knowledge, it is the most recent treatment of the subject.[2]

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[2] *See, e.g.*, TERENCE, EUNUCHUS (161 BCE) ("Nothing is said that's not been said before."); *Ecclesiastes* 1:9 (English Standard Version) ("[T]here is nothing new under the sun."). For further discussion, *see* JEROME, COMMENTARIES ON ECCLESIASTES (388-89 AD, Robin McGregor trans.) ("And the comic [Terence] said something similar to [Ecclesiastes 1:9] . . . about which my teacher Donatus, when he was lecturing about this verse, said: 'Let them die, who have said our words before us.'"), https://historicalchristian.faith/by_father.php?file=Jerome%2FCommentary%2520on%2520Ecclesiastes.html. *See also* KHAKHEPERRASENEB, SAYINGS OF KHAKHEPERRASENEB (circa 1850 BCE) ("If only I had unknown utterances and extraordinary verses . . . free from repetition, without a verse of worn-out speech spoken by the ancestors! . . . For what is already said can only be repeated."), *inscribed by* UNKNOWN SCRIBE, WOODEN WRITING BOARD INSCRIBED WITH THE SAYINGS OF KHAKHEPERRASENEB (circa 1500 BCE), *wound up in the* BRITISH MUSEUM, *available at*: https://www.britishmuseum.org/collection/object/Y_EA5645.

APPENDIX: A COMPREHENSIVE ACCOUNT OF NOVELTY

Ambitious readers, beguiled by the siren song of novelty, may be tempted, upon briefest glimpse of the depths plumbed here, to attempt further spelunking in the hopes of uncovering further novelty. The author herein offers a number of other novel articulations of novelty to dissuade such efforts. The reader can safely assume that any formulation not offered here has been considered and deemed insufficiently novel; of course, the formulations that *are* offered here are, by virtue of inclusion, also no longer novel.

- Whereas prior authors have folded the laundry, this Article pairs the orphaned socks of existing literature.
- Viewed this way, the scholarship to date has effectively set up an elaborate series of screens; this Article cuts hard to the rim for the open dunk.
- This Article looks the existing literature's gift horse in the mouth.
- This Article provides the only bullet in the game of Russian Roulette set up by the existing literature.
- This Article beats on, a boat against the current, borne back ceaselessly into the past.
- This Article ices the cake of prior scholarship.
- This Article pulls on the loose threads of previous scholars' sweaters.
- This Article gives the mouse a cookie.
- This Article rotates the existing literature's tires.
- This Article performs osteomancy with the bones of prior work.
- This Article consults the entrails of existing literature.
- This Article shakes the literature's Magic 8 ball.
- This Article unscrews the lid existing literature declared stuck.
- This Article sifts through the scholarship's junk mail.
- Among the literature's infinite monkeys typing for an infinite time, this Article at last produces *Hamlet*.
- This Article asks for whom the literature's bell tolls.
- This Article licks its finger to turn the corpus's page.
- This Article teaches the literature's old dog a new trick.
- This Article draws the sword from the stone of past work.
- This Article runs through the tunnel that past authors painted on the brick wall of existing literature.
- This Article finds the literature's Waldo.
- This Article imagines Sisyphus surprised.